

3. 9:00 AM CASE NUMBER: C26-00948
CASE NAME: ABRAHIM YASEEN HOMRAN VS. SN SERVICING CORPORATION
***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

If either party challenges the tentative ruling, the CMC will proceed. If neither party challenges the tentative ruling, the CMC is continued to ____, at 8:30 am in Department 10.

4. 9:00 AM CASE NUMBER: C26-01184
CASE NAME: NAVEEN AUJLA VS. DOES 1-50, INCLUSIVE
HEARING ON ORDER TO SHOW CAUSE IN RE: WHY A PRELIMINARY INJUNCTION SHOULD NOT BE ISSUED ENJOINING DEFENDANT OR ITS AGENTS FROM RECORDING A TRUSTEE'S DEED UPON SALE
FILED BY:

TENTATIVE RULING:

Despite continuances and a recently filed Answer, Defendant has failed to respond to the Court's Order to Show Cause as to Why a Preliminary Injunction Should Not Be Issued Enjoining Defendant or its Agents from Recording a Trustee's Deed Upon Sale for the property located at 6246 Massara St., Danville, CA 94506. The Preliminary Injunction shall therefore issue.

5. 9:00 AM CASE NUMBER: C26-01184
CASE NAME: NAVEEN AUJLA VS. DOES 1-50, INCLUSIVE
HEARING ON ORDER TO SHOW CAUSE IN RE: DEFENDANT'S COUNSEL JASON SCOTT FAILURE TO APPEAR ON AUGUST 19, 2026

FILED BY:

TENTATIVE RULING:

On the basis of the Declaration of W. Jason Scott dated September 3, 2026, this OSC is discharged.

6. 9:00 AM CASE NUMBER: MSC21-00624
CASE NAME: COLEMAN VS YDESIGN GROUP, LLC
HEARING IN RE: COMPLIANCE

FILED BY:

TENTATIVE RULING:

The Court has reviewed the declaration of Nicole Bench and authorizes the release of the final 5% of the funds.

7. 9:00 AM CASE NUMBER: MSC21-01948
CASE NAME: KATZ VS. ESKATON PROPERTIES
SETTLEMENT CONFERENCE WITH SETTLEMENT MENTOR

FILED BY:

TENTATIVE RULING:

Parties to participate in settlement conference as ordered.

Law & Motion

8. 9:00 AM CASE NUMBER: C24-00664

CASE NAME: COUNG CHAU VS. RONALD FONG

***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED CROSS-COMPLAINT**

FILED BY: FONG, RONALD A

TENTATIVE RULING:

Before the Court is Defendants and Cross-Complainants Ronald A. Fong and Tyler Fong individually and dba Next Level Motors, Inc. (collectively, "Cross-Complainants")'s motion for leave to file a first amended cross-complaint. The Motion is opposed by Plaintiff and Cross-Defendant Cuong Vi Chau and Bill Truong (collectively, "Cross-Defendants").

Cross-Defendants seek to amend their Cross-Complaint to include additional allegations, update the damage calculations, and convert the first cause of action from breach of an oral contract to breach of an implied contract.

For the following reasons, the motion is **granted**.

Cross-Defendants are ordered to separately file the First Amended Cross Complaint with the Court by September 21, 2026.

Legal Standard

The court may, in its discretion, in the furtherance of justice "allow, upon any terms as may be just, an amendment to any pleading or proceeding[.]" (Code Civ. Proc., § 473(a)(1); see also Code Civ. Proc. § 576 [stating that "[a]ny judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading"].) The court's discretion should be "exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047.) It is "an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment," even if the amendment was the result of an unreasonably delayed filing. (*Id.* at 1048.)

Under California Rules of Court Rule 3.1324(a), a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

Under California Rule of Court Rule 3.1324(b), a separate declaration must accompany the motion and